

THOMAS, J., concurring

reliance interests, or judicial “humility,” Tr. of Oral Arg. 20, 41–42—they cannot overcome that fundamental flaw.

In any event, these oft-cited benefits are frequently illusory. The Court’s multifactor balancing test for invoking *stare decisis* has resulted in policy-driven, “arbitrary discretion.” The Federalist No. 78, at 471. The inquiry attempts to quantify the unquantifiable and, by frequently sweeping in subjective factors, provides a ready means of justifying whatever result five Members of the Court seek to achieve. See *Holder v. Hall*, 512 U. S. 874, 943–944 (1994) (THOMAS, J., concurring in judgment) (describing a “‘totality of circumstances’” test as “an empty incantation—a mere conjurer’s trick”); *Lawrence v. Texas*, 539 U. S. 558, 577 (2003) (acknowledging that *stare decisis* is “‘a principle of policy and not a mechanical formula’”); see also *Casey*, 505 U. S., at 854–856 (invoking the “kind of reliance that would lend a special hardship to the consequences of overruling and add inequity to the cost of repudiation”). These are not legal questions with right and wrong answers; they are policy choices. See, e. g., A. Goldberg, *Equal Justice: The Warren Era of the Supreme Court* 96 (1971) (“[T]his concept of *stare decisis* both justifies the overruling involved in the expansion of human liberties during the Warren years and counsels against the future overruling of the Warren Court libertarian decisions”).

Members of this Court have lamented the supposed “uncertainty” created when the Court overrules its precedent. See *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U. S. 230, 260–261 (2019) (BREYER, J., dissenting). But see *Lawrence*, *supra*, at 577 (asserting that *not* overruling precedent would “caus[e] uncertainty”). As I see it, we would eliminate a significant amount of uncertainty and provide the very stability sought if we replaced our malleable balancing test with a clear, principled rule grounded in the meaning of the text.

The true irony of our modern *stare decisis* doctrine lies in the fact that proponents of *stare decisis* tend to invoke it